Ethics Questions

David Jarman, Kevin Worner, Marshall Gaucher

Discussion 1

You are a database/system administrator for a large medical database company. Some DNA is found at the scene where a child was kidnapped. There is good evidence that time is limited.

You know that you could run the sample against the database which may provide valuable leads - but it violates the reasonable search and seizure clause established by the courts; will open up private medical data for others to see during the search, violate company policy and possibly destroy customer faith in the company. What do you do?

It seems that on the larger scale, running the sample against the database would be incredibly unethical, since it violates a previously established trust between patients and your company. On the other side, it might be unethical to withhold crucial information that could lead to the capture of a kidnapper. These two principles are in conflict; however, we would choose to not run the DNA against the database.

The main reason for choosing this route is that we have not been asked by anyone in authority for help in the investigation, so even if we did find the kidnapper, we would still run into legal trouble. We would also be abusing our powers, which could lead to using that power (information) in other ways in the future.

Discussion 2

You know that a co-worker and long time friend has a drug problem. Do you bring this issue to management knowing that it can lead to this person's job termination? What if errors by this person can endanger lives?

In the case that your friend holds a mediocre job position, that in no way could endanger others' lives, such as telemarketing, we think it would be ethical to live and let live. In other words, if your friend performs well at work and the manager doesn't notice any job performance issues, then there is no reason to try and get your friend fired.

On the flip side, if this particular person is operating heavy machinery and could possibly be putting other's lives in danger, I think it would be ethical to inform someone who needs to know, such as a construction manager. It could even be unethical to not tell someone, if the person is that dangerous to themselves and/or others.

Discussion 3

You suspect that a particular line of questions on the tech support blog is being used by developers at another company to reverse engineer your product. Your boss asks you to post misleading information to slow them down. What do you do?

As the saying goes, two wrongs don't make a right. What we mean is that even though the other company is being unethical by trying to reverse engineer your designs, lying on a blog does not make the situation better. An alternative would be to not reply to questions you feel would reveal too much. As far as dealing with the boss who asked you to openly lie, we would confront him and try to explain our qualm with lying about trade information.

Discussion 6

If you strongly suspect that a particular device or software from company Y violates the patent rights of Company X, what should your recommendation to your manager be about purchasing it for your own company even if there is significant cost savings?

We would explain to the manager that product Y is currently in violation of a patent, and that as cheap as this product may be now, in the long run, it could cost our company much more. Therefore, it would be better to get a more expensive product with guaranteed support rather than a cheaper one with the potential for lawsuits and patent infringements.

The obvious and ethical thing to do here would be to not knowingly support fraudulent companies. But what if our company began using company Y's product with knowing it was in violation of another company's patent? In this case, maybe it is not unethical to use the product, thinking it is from a legitimate source. This shows the separation of ethics from legality. Ignorance would not work as an alibi in a court of law.